

December 31, 2025

CALIFORNIA DEPARTMENT OF SOCIAL SERVICES

EXECUTIVE SUMMARY

ALL COUNTY LETTER NO. 25-93

The purpose of this All County Letter is to provide County Welfare Departments with guidance regarding significant changes to policy related to the CalFresh time limit for Able-Bodied Adults Without Dependents, as required by the House of Representatives 1, An Act To provide for reconciliation pursuant to title II of H. Con. Res. 14. (HR1) (Public Law 119-21), signed into law on July 4, 2025.



JENNIFER TROIA
DIRECTOR

CALIFORNIA HEALTH & HUMAN SERVICES AGENCY
DEPARTMENT OF SOCIAL SERVICES
744 P Street • Sacramento, CA 95814 • www.cdss.ca.gov



GAVIN NEWSOM
GOVERNOR

December 31, 2025

ALL COUNTY LETTER NO. 25-93

TO: ALL COUNTY WELFARE DIRECTORS
ALL CALFRESH PROGRAM SPECIALISTS
ALL CONSORTIUM PROJECT MANAGERS
ALL QUALITY CONTROL PROGRAM COORDINATORS
ALL TRIBES WITH A TITLE IV-E AGREEMENT WITH CDSS

SUBJECT: CALFRESH IMPLEMENTATION OF HOUSE OF
REPRESENTATIVES 1: CHANGES TO TIME LIMIT FOR ABLE-
BODIED ADULTS WITHOUT DEPENDENTS POLICY

REFERENCE: [HOUSE OF REPRESENTATIVES 1 \(PUBLIC LAW 119-21\); TITLE 7 OF THE UNITED STATES CODE SECTION 2015\(o\)\(2\); TITLE 7 CODE OF FEDERAL REGULATIONS \(CFR\) 273.24; ALL COUNTY LETTER \(ACL\) NO.23-80; FISCAL RESPONSIBILITY ACT OF 2023 \(FRA\); INDIAN HEALTH CARE IMPROVEMENT ACT \(IHCIA\); FOOD AND NUTRITION SERVICE \(FNS\) MEMO: THE SECRETARY'S AUTHORITY ON ABLE-BODIED ADULTS WITHOUT DEPENDENTS \(ABAWD\) WAIVERS; WELFARE AND INSTITUTIONS CODE \(WIC\) SECTION 18926; 7 CFR 273.7\(b\)\(1\); ACL NO. 25-41; ACL NO. 19-93; ACL NO. 22-74; SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM \(SNAP\) QUALITY CONTROL REVIEW HANDBOOK \(FOOD AND NUTRITION SERVICE HANDBOOK 310\); UNITED STATES DEPARTMENT OF AGRICULTURE FOOD AND NUTRITION SERVICE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM \(SNAP\) PROVISIONS OF THE ONE BIG BEAUTIFUL BILL ACT OF 2025 ABAWD EXCEPTIONS IMPLEMENTATION MEMORANDUM; 7 CFR 273.24\(c\)\(3\); 7 CFR 273.24\(c\)\(4\); USDA FNS SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM \(SNAP\) PROVISIONS OF THE ONE BIG BEAUTIFUL BILL ACT OF 2025 ABAWD WAIVERS IMPLEMENTATION MEMORANDUM;](#)

[7 CFR 271.2](#); [7 CFR 273.24\(l\)](#); [USDA FNS SNAP MEMO – USE OF INFORMATION RECEIVED FROM OTHER PUBLIC ASSISTANCE PROGRAMS](#); [7 CFR 273.24\(k\)](#); [7 CFR 273.24\(k\)\(1\)\(i\)](#); [7 CFR 273.24\(k\)\(1\)\(ii\)](#); [ALL COUNTY INFORMATION NOTICE \(ACIN\) NO. I-88-16](#); [7 CFR 273.24\(b\)\(2\)](#); [ACL No. 23-30](#); [7 USC 2015\(o\)\(3\)](#); [ACL NO. 21-101](#); [ACL NO. 21-101E](#)

The purpose of this All County Letter (ACL) is to provide County Welfare Departments (CWDs) with guidance on significant changes to policy related to the CalFresh time limit for Able-Bodied Adults Without Dependents (ABAWD) set forth in House of Representatives 1, an Act to provide for reconciliation pursuant to title II of H. Con. Res. 14. (HR1) ([Public Law 119-21](#)), signed into law on July 4, 2025.

Due to the complexity of these policy changes and other factors beyond CDSS's control, the guidance provided via this letter is effective June 1, 2026. This is the earliest possible implementation date that reflects the time required to design and implement the necessary automation changes within the California Statewide Automated Welfare System (CalSAWS) and to train county staff to ensure consistent and accurate application of the guidance statewide.

Counties must not attempt to implement HR 1 related policy changes through manual processes or system workarounds. Relying on manual processes at this scale would create a high risk of inconsistent data entry, incorrect case actions, and data tracking gaps the system would not be able to reconcile. These errors could lead to systemic and long-term inaccurate eligibility outcomes and disruptions in benefits. That said, until the required CalSAWS automation changes are implemented, counties must continue to enter information to assist with future exemption screening using current system functionality.

BACKGROUND

Under [Title 7 of the United States Code Section 2015\(o\)\(2\)](#) and [Title 7 Code of Federal Regulations \(CFR\) 273.24](#), the receipt of Supplemental Nutrition Assistance Program (SNAP) benefits, known as CalFresh in California, is limited to three full months in a 36-month period for people that meet the definition of an ABAWD. This is commonly referred to as the "ABAWD time limit."

On July 4, 2025, President Trump signed HR1 into law, which includes significant changes to CalFresh. Specifically, HR1 makes changes to the definition of an ABAWD, including increased age requirements, and narrows exemption criteria. Additionally, HR1 limits eligibility for state and county waivers of the time limit. A forthcoming ACL will provide more information on federal changes to the criteria for requesting a waiver of the time limit. Changes to CalFresh time limit policy will result in more people subject to

the time limit and at risk of losing CalFresh eligibility, unless they are determined exempt or meet the work requirements.

For additional information regarding HR1 and its impact to CalFresh, reference [ACL 25-50](#) and [ACL 25-50E](#) issued July 14, 2025, and August 26, 2025, respectively.

OVERVIEW OF CALFRESH TIME LIMIT POLICY

For CalFresh recipients deemed to be an ABAWD, eligibility for CalFresh is limited to three full countable months of benefits in a fixed 36-month period unless the individual:

- Is exempt from the ABAWD time limit;
- Satisfies the ABAWD work requirement;
- Lives in a county or area with a waiver of the ABAWD time limit;
- Qualifies for an additional three consecutive month period of eligibility; or
- Receives a discretionary exemption.

If an individual is exempt, they are not subject to the ABAWD time limit. If an individual is not exempt, they are subject to the ABAWD time limit and must work or participate in a qualifying work activity in order to receive benefits beyond the three countable months granted within a fixed 36-month period.

HR1 does not change the general parameters of the time limit rules but significantly changes who is subject to the time limit and who qualifies for an exemption.

NEW ABAWD TIME LIMIT AGE REQUIREMENTS

Under prior federal law, ABAWDs were defined as CalFresh recipients aged 18 through 49 who are able-bodied, do not have dependents, and do not meet any exemption criteria. As announced in [ACL No. 23-80](#), issued on September 21, 2023, the [Fiscal Responsibility Act of 2023 \(FRA\)](#) gradually increased the upper age limit of those subject to the time limit from 49 to 54, effective October 1, 2024.

HR1 changes the definition of an ABAWD to include individuals between the ages of 18 through 64, unless exempt. Prior to HR1, the definition of an ABAWD included individuals between the ages of 18 through 54.

Per the [USDA FNS SNAP Provisions of the One Big Beautiful Bill Act of 2025 ABAWD Exceptions Implementation Memorandum](#) released October 3, 2025, HR1 does not change general SNAP work requirements, also known as work registration. Individuals aged 60 or older remain exempt from work registration. However, due to amendments at [7 USC 2015\(o\)\(3\)](#) that raise the ABAWD age threshold to 64, individuals aged 60 through 64 who are exempt from work registration solely due to age, are still subject to

the ABAWD time limit, unless they qualify for **another work registration exemption or an ABAWD exemption**.

Counties must screen individuals age 60 through 64 for any applicable ABAWD time limit exemptions under [7 USC 2015\(o\)\(3\)](#), including all the work registration exemptions under [7 CFR 273.7\(b\)\(1\)](#) other than age. If an individual meets the criteria for an ABAWD time limit exemption or a work registration exemption other than age, then the individual is exempt for the ABAWD time limit.

Individuals are no longer considered ABAWDs starting the month of their 65th birthday.

Example: A CalFresh participant turns 65 on November 15, 2026. This individual would no longer be subject to the ABAWD time limit beginning November 1, 2026.

HR1 also does not impact the definition of “elderly” in Section 3(j) of HR1. Individuals age 60 or older continue to be defined as “elderly” for CalFresh purposes. Therefore, individuals 60 or older will continue to receive the excess medical deduction and an uncapped shelter deduction, regardless of whether they are also considered an ABAWD under HR1.

CHANGES TO ABAWD TIME LIMIT EXEMPTIONS

Prior to HR1, ABAWDs who met the following criteria were exempt from the time limit:

- Under the age of 18 or over the age of 54;
- Medically certified as physically or mentally unfit for work;
- Exempt from work registration;
- Participating in an Office of Refugee Resettlement training program at least half-time;
- Residing in a household with a member under the age of 18;
- Pregnant; or
- Temporarily exempt as a veteran, an individual experiencing homelessness, or a former foster youth under the age of 25 who was in foster care on the date of attaining 18 years of age. These exemptions were established under the [FRA of 2023](#) and were set to sunset on October 1, 2030.

HR1 introduces a new exemption criterion and eliminates several others.

New ABAWD Time Limit Exemption

Individuals who meet the definition of Indian, Urban Indian, or California Indian as defined under the [Indian Health Care Improvement Act \(IHCIA\)](#), also referred to as Native Americans, Alaska Natives, and Tribal Members, are exempt from the time limit.

IHCIA Definitions

Per FNS guidance, the following definitions must be used to establish an exemption under this criterion. Self-attestation that a household member is Indian, Urban Indian, or California Indian per the definitions below is sufficient to grant the exemption. Self-attestation may be captured verbally or in writing. If the household verbally attests that they are Indian, Urban Indian, or California Indian, the county must note it in the case record and must not seek additional verification, unless questionable.

Indian (25 U.S.C. 1603(13))

An individual is considered an “Indian” if they are a member of an Indian Tribe. An Indian Tribe includes any Indian Tribe, band, nation, or other organized group or community, including Alaska Native villages, groups, or regional or village corporations established under the Alaska Native Claims Settlement Act, that is recognized as eligible for federal programs and services provided to Indians because of their status as Indians. This definition of “Indian” is narrower than the definition of “Indian Tribe” at [7 CFR 271.2](#).

Urban Indian (25 U.S.C. 1603(18))

An individual is considered an “Urban Indian” if they reside in an urban center and meet at least one of the following:

1. They are a member of a Tribe, band, or other organized group of Indians, including groups terminated since 1940 and those recognized now or in the future by their State, or a first- or second-degree descendant of such a member;
2. They are an Eskimo, Aleut, or other Alaska Native;
3. They are determined to be an Indian under regulations issued by the U.S. Secretary of the Interior; or
4. They are determined to be an Indian under regulations issued by the U.S. Secretary of Health and Human Services.

An urban center is any community with a sufficient urban Indian population with unmet health needs to warrant assistance under subchapter IV of the IHICA, as determined by the Secretary of Health and Human Services.

California Indian (25 U.S.C. 1679(a))

An individual is considered a “California Indian” if they meet at least one of the following:

1. They are a member of a federally recognized Indian Tribe;
2. They are a descendant of an Indian who resided in California on June 1, 1852, provided they are a member of the Indian community served by a local Indian Health Service program and are regarded as an Indian by their community;
3. They are an Indian who holds trust interests in public domain, national forest, or reservation allotments in California; or

4. They are an Indian of California listed in the plans for distribution of assets of rancherias and reservations under the Act of August 18, 1958, including their descendants.

ELIMINATED AND MODIFIED ABAWD TIME LIMIT EXEMPTIONS

Eliminated Exemptions

HR1 removes the temporary exemptions added by the [FRA of 2023](#) for the following populations:

- Veterans;
- Individuals experiencing homelessness; and
- Youth under age 25 who were in foster care on their 18th birthday.

Meeting these criteria alone no longer qualifies someone for an exemption from the ABAWD time limit. These individuals may be subject to the ABAWD time limit unless they qualify for another exemption.

Modified Exemptions

HR1 also modified exemptions under [7 CFR 273.24\(c\)\(3\)](#) and [7 CFR 273.24\(c\)\(4\)](#) which allowed individuals who were either the parent of a child under the age of 18 or those who reside with a household member under the age of 18 to be exempt from the ABAWD time limit. Individuals are no longer exempt solely because they live in a household with or are a parent of someone under the age of 18.

The exemption criteria has been modified under HR1 to limit the dependent child exemption to individuals who are either the parent of, or otherwise responsible for the care of, a dependent child under the age of 14. An adult may qualify for this exemption if they have primary or shared responsibility for the care of a dependent child under the age of 14 regardless of whether the child physically resides in the household.

A single dependent child under age 14 may exempt more than one adult, provided each adult independently meets the definition of being responsible for the child's care. Each adult's responsibility for care must be individually established and documented in the case record.

A dependent child under this provision is defined as a child under age 14 who relies on the individual for care or supervision. The child is not required to be included in the CalFresh household, nor is physical or legal custody required.

Responsibility may be established through formal or informal caregiving arrangements with any adult, including but not limited to a parent, stepparent, sibling, grandparent,

other relative, or unrelated person, provided the adult regularly provides necessary care or supervision.

Examples:

- Two parents residing together with one mutual child under age 14 may both qualify.
- Two parents residing together with two or more children under age 14 may both qualify.
- Two adults in the same household, each responsible for the care of their own child under age 14, may each qualify.
- An adult sibling (age 18 or older) who regularly provides after-school care and supervision for a younger sibling under age 14 may qualify.
- A non-parent household member who routinely provides childcare may qualify.

Responsibility for care may be verified through self-attestation, unless questionable.

VERIFICATION OF ABAWD EXEMPTIONS

For the new and modified ABAWD time-limit exemptions established under HR1 and in alignment with current policy, counties must only request verification to establish an exemption if verification is required per [ACL No. 19-93](#) issued September 12, 2019, or if the information provided is questionable, as per [7 CFR 273.24\(l\)](#). Information can only be considered questionable by the county if it conflicts with previous statements made by the individual or conflicts with information in the case record.

As mentioned above, self-attestation that a household member is Indian, Urban Indian, or California Indian per the definitions articulated in this letter, is sufficient to grant the new exemption under HR1. If a county determines that verification from a participant is necessary, it must first use all available internal resources, including case record data and information shared from other public assistance programs, as discussed below. Only after exhausting these alternatives may the county request documentary evidence or other verification directly from the participant.

For all ABAWD exemptions, including the new and modified exemptions, verified case information provided for Medi-Cal or California Work Opportunity and Responsibility to Kids (CalWORKs) purposes may be used for CalFresh purposes without additional verification, provided that the information has been verified by Medi-Cal or CalWORKs and clearly affects the CalFresh case. This approach aligns with the FNS memo [SNAP - Use of Information Received from Other Public Assistance Programs](#) released June 21, 2023, which allows CalFresh to accept verified information from other programs administered by the same agency.

IMPLEMENTATION INSTRUCTIONS

Counties must not take any negative action related to the time limit or work requirements on a case, including applying a countable month toward the ABAWD time limit, reducing benefits, or closing a case due to ineligibility, until an individual who meets the new definition of an ABAWD has been re-screened under the new and modified time limit exemption criteria under HR1 and has been informed of the ABAWD time limit and work requirements. For the purpose of this letter, an “HR1 compliant exemption screening” refers to an exemption screening that assess an individual for an exemption using the new and modified time limit exemption criteria under HR1. Effective June 1, 2026 and moving forward, counties must do the following:

EXEMPTION SCREENING

Per [7 CFR 273.24\(k\)](#), counties must screen for an exemption from work registration and the ABAWD time limit before the time limit or any countable month can be applied. Counties must screen for exemptions at both certification and recertification. This exemption screening must be complete or offered voluntarily if an individual discloses they may meet the criteria for an exemption.

Per [ACL No. 19-93](#), counties must screen each household member individually. Counties must not solely rely on information available in CalSAWS to determine if an individual meets the criteria for an exemption from the ABAWD time limit. A full screening is required to ensure that all available exemptions are reviewed and captured in the system. Counties must ensure that all applicable exemptions are entered into CalSAWS and documented in the case record when an ABAWD qualifies for more than one exemption.

Ongoing Households

On June 1, 2026, counties will have the ability to review ongoing cases in CalSAWS based on the updated policy under HR1. Beginning June 1, 2026, ongoing CalFresh households must complete an HR1 compliant exemption screening at their next recertification, and every recertification thereafter. Meaning, this change is effective for all ongoing households with recertifications due in June 2026 and thereafter. Counties must not assign a countable month until a HR 1 compliant exemption screening is complete, and only if the individual does not meet the criteria for an exemption or is not complying with the ABAWD work requirements.

Federal regulations at [7 CFR 273.24\(k\)](#) require counties to screen ABAWDs for all current exemptions before assigning countable months. Because exemption screening completed before June 1, 2026 does not reflect the new and modified exemption criteria under HR1, counties must rescreen all ongoing households with recertification due June 1, 2026 and thereafter.

New Applicants

On June 1, 2026, counties will have the ability to review new applications in CalSAWS based on the updated policy under HR1. Beginning June 1, 2026, new applicants must complete an HR1 compliant exemption screening at initial certification. As previously stated, an HR1 compliant screening must be complete before the time limit can be imposed on an individual, including the application of a countable month. Individuals who are determined eligible before June 1, 2026 will not be subject to the ABAWD time limit until a HR1 compliant exemption screening is complete at their recertification. Counties are also reminded that a partial month of benefits does not count toward the 3 months in a 36-month limit. See [ACL No. 19-93](#) for more information.

Changes During the Certification Period

According to [7 CFR 273.24\(k\)\(1\)\(i\)](#), if during the certification period, an individual loses an existing exemption due to a change in circumstances, the county must not begin assigning countable months until the individual is re-screened to determine whether another exemption applies. Following the recertification during which an HR1 compliant exemption screening is complete, counties must apply current rules regarding mid-period reports for ABAWDs subject to the time limit, including a drop in work hours. The county must re-screen at the household's next scheduled recertification. See [ACL No. 21-101](#) and [ACL No. 21-101E](#) for more information on mid-period actions.

If during the certification period, an individual subject to the time limit experiences a change in circumstances that results in newly qualifying for an exemption, the county must act promptly, but no later than 10 days beyond the date of receipt, to apply the exemption (assuming the information provided is not questionable). The county must not assign a countable month after a new exemption is established. If the information received during the certification period is questionable, the county must request verification and allow the household 10 days to provide it before determining whether the exemption can be applied.

As a reminder, per [ACL No. 19-93](#), individuals subject to the time limit are required to report mid-period if their household's gross monthly income goes over their Income Reporting Threshold (IRT). They are also required to report if their work hours drop below 20 hours per week or 80 hours per month averaged monthly, unless the individual resides in a waived county. After June 1, 2026, if an individual subject to the time limit (who has completed HR1 compliant exemption screening) reports a drop in work hours, the county must assess if the individual qualifies for good cause or another exemption before applying a countable month in accordance with [ACL No. 19-93](#). An additional exemption screening is not required during the certification period.

If an individual has not completed an HR 1 compliant exemption screening, they are only required to report mid-period if their household's gross monthly income goes over their IRT. This individual is not required to report if their work hours drop below 20 hours per week because they cannot be subject to the ABAWD time limit until an HR1 compliant exemption screening is complete. Only if this individual is screened for an exemption at recertification and is determined not exempt, can the individual be subject to the time limit and the corresponding work and mid-period reporting requirements.

STATEWIDE CLOCK

Beginning January 1, 2026, a new statewide 36-month ABAWD clock will start. This means that, beginning January 1, 2026 all individuals subject to the time limit have three countable months available within the new 36-month period. In other words, the statewide clock will reset, and an individual subject to the time limit will have three countable months to use between January 1, 2026 and December 31, 2028 (36-month period). A fixed statewide clock means the start and end dates are the same for all individuals subject to the time limit across all 58 counties. Once started, the 36-month clock continues uninterrupted, regardless of whether an individual receives CalFresh benefits in any given month, lives in a county or geographic area within a county where the time-limit is waived, satisfies the ABAWD work requirement, qualifies for an exemption, is granted a discretionary exemption, or loses eligibility.

HR1 does not have an impact on California's statewide 36-month ABAWD clock. As previously mentioned, no countable months may be assigned prior to June 1, 2026. Beginning June 1, 2026, countable months may only be applied after an individual completes a HR1 compliant exemption screening, at initial certification for new applicants or at recertification for ongoing households. Any unused countable months do not carryover to the preceding clock. For information on the 36-month clock, refer to [All County Information Notice \(ACIN\) No. I-88-16](#), issued December 14, 2016.

NOTICING REQUIREMENTS

Noticing requirements related to ABAWD time limit rules are unchanged under H.R. 1. Counties must issue the following notices consistent with instructions in [ACL No. 19-93](#) and [ACL No. 22-74](#) issued September 2, 2022:

- [CalFresh Notice of Work Rules \(CF 886\)](#) and Oral Explanation – The CF 886 and oral explanation must be provided to any household with a member who becomes newly subject to CalFresh work requirements as a result of H.R. 1. As standard procedure, the CF 886 and oral explanation must be provided at application, recertification, and whenever a previously exempt or new household member becomes subject to work requirements. The oral explanation may be provided to the head of household, a responsible household member, or an authorized representative, and must convey the same information for each household member as reflected on the CF 886.

- [CalFresh Countable Month Letter – Use of Countable Month for ABAWDs \(CF 377.11B\)](#) – The CF 377.11B must be sent no later than the 5th day of each month during which the ABAWD uses a countable month of CalFresh benefits.
- [CalFresh Time Limit Notice – Failure to Meet ABAWD Work Requirement \(CF 377.11\)](#) – The CF 377.11 must be sent no later than ten days prior to discontinuance of CalFresh benefits.
- [CalFresh ABAWD Time Limit Exemption Screening Form \(CF 377.11E\)](#) – The CF 377.11E must be included in the recertification package, and for counties coming off a waiver, it may be sent at least 30 days prior to implementation of the time limit to all households that include at least one member determined to be a potential ABAWD.
- The ABAWD Work Reminder Letter - Effective the release of this ACL, CWDs are no longer required to provide the ABAWD Work Reminder letter to ABAWDs subject to the time limit. Instead, the CF 886 and comprehensive oral explanation of work rules and CF 377.11B will provide households with relevant reminders regarding ABAWD time limit rules.

VOLUNTEER AND COMMUNITY SERVICE HOURS

Individuals subject to the time limit who are not exempt may meet the work requirement by performing volunteer or community service hours, consistent with the policy guidance in [ACL No. 19-93](#). Volunteer and community service hours can be combined with work or other qualifying activities to meet the ABAWD work requirement. Counties are reminded that the [CF 888 – CalFresh ABAWD Volunteer Work Hours Verification Form](#) is available for the purpose of verifying volunteer or community service hours. Unlike other exemptions, Verification of volunteer or community service hours must be obtained and documented in the case record.

For additional information on verifying whether an individual is meeting the work requirement through qualifying activities beyond volunteer and community service hours, such as work and education and training, see [ACL No. 19-93](#).

DISCRETIONARY EXEMPTIONS

As a result of the FRA, there are currently zero discretionary exemptions available for county use. Counties may not apply discretionary exemptions at this time.

California will begin to accrue new discretionary exemptions upon the expiration of the statewide waiver. FNS releases the amount of discretionary exemptions a state will

receive annually. Once California has been allocated a new number of discretionary exemptions, CDSS will release a separate letter with further instructions.

Although no statewide discretionary exemptions are available at this time, counties must continue to evaluate individuals for allowable exemptions or determine if the individual had good cause for not satisfying the work requirement, as outlined in [7 CFR 273.24\(b\)\(2\)](#) and [ACL No. 23-30](#), issued on March 22, 2023.

If a discretionary exemption is improperly applied, counties must review for a potential overissuance (OI) and take corrective action.

ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) HOUSEHOLDS

Households certified under the Elderly Simplified Application Project (ESAP) are certified for 36 months. The ESAP certification period cannot be shortened once it is assigned. ESAP households with individuals ages 60–64 cannot be subjected to ABAWD rules until they have been screened in compliance with the modified exemption criteria under HR 1. As stated previously, counties must screen for exemptions at both initial certification and recertification.

At recertification, counties must follow the correct screening order for ESAP participants ages 60–64:

1. **Screen for work registration exemptions first.**
 - If the individual qualifies for a work registration exemption other than the age exemption, they are **not** considered an ABAWD and do not require further ABAWD screening.
2. **If no work registration exemption applies**, screen for ABAWD exemptions.
 - Individuals who meet an ABAWD exemption are not subject to the time limit.
 - Those who do not qualify for any exemption are subject to the time limit.

Typically, the recertification interview for ESAP households is waived. Counties must attempt to contact the household to complete the required screening. If the county is able to complete the exemption screening through contact with the household, no interview is required solely for this purpose. If the county is unable to reach the ESAP household to complete the HR 1 compliant exemption screening, the county must document all attempts to make contact and then require an interview in order to complete the screening prior to taking any negative action, including the application of countable months. If the household fails to complete the required interview, the recertification must be denied for missed interview.

As a reminder, per [ACL No. 19-93](#), an individual cannot be subject to the time limit until they have been screened for an exemption and informed of the ABAWD work rules. Those who have not been informed cannot be required to make a report of a drop in

work hours, because they are not subject to the time limit. Following the screening process, counties must provide an oral explanation of the work rules along with the CF 886.

ESAP households with exempt or non-exempt ABAWD members ages 60-64 who otherwise meet ESAP eligibility criteria must continue to receive a 36-month certification period. For additional guidance on ESAP procedures, refer to [ACL No. 20-145](#).

COUNTY WELFARE DEPARTMENT REMINDERS

Regardless of waiver status, counties must remain ready to transition off the waiver when it expires or if it is terminated. All counties, including those under a waiver of the ABAWD time limit must:

- Identify ABAWDs, screen for exemptions (including HR1 compliant exemption screening beginning June 1, 2026), and inform participants of ABAWD rules.
- Provide the CF 886 along with a comprehensive oral explanation of each applicable work rule to the household for all members whether exempt or subject to the CalFresh work rules.
- Track and report work registrant, ABAWD, and Employment and Training (E&T) data on the Non-Assistance CalFresh Work Registrants, Able-Bodied Adults Without Dependents, and Employment and Training Program Quarterly Statistical (STAT 47) report.

For more information on county responsibilities pertaining to ABAWDs, see [ACL No. 19-93](#); and [ACL No. 22-74](#), issued September 2, 2022.

QUALITY CONTROL

CalFresh Quality Control (QC) will review cases based on the updated state guidance issued in this letter on the new changes under HR1 for individuals subject to the ABAWD time limit. QC must apply the verification standards and procedures specified in the [Supplemental Nutrition Assistance Program \(SNAP\) Quality Control Review Handbook \(Food and Nutrition Service Handbook 310\)](#) for its review.

Counties are reminded the case record must provide sufficient documentation to support the benefit level determination. Documentation must provide enough detail to permit a reviewer with no prior knowledge of the individual case to determine the accuracy of benefit allotments.

If you have any questions or need additional guidance regarding the information in this letter, contact the CalFresh Policy Bureau at CalFreshPolicy@dss.ca.gov.

Sincerely,

Original Document Signed By

ALEXIS FERNÁNDEZ GARCIA
Deputy Director
Family Engagement and Empowerment Division

cc: All Federally Recognized Tribes